

		Defendant also contends that the Court of Appeal in <i>Coe v. City of San Diego</i> (2016) 3 Cal.App.5th 772 found that police reports are admissible under the official records exception. <i>Coe</i> is similarly distinguishable. <i>Coe</i> involved reports of police officers and detectives who inspected the plaintiff's business and a finding that the police report satisfied the trustworthiness requirement where it is based on the reporting officer's firsthand observations. (<i>Coe v. City of San Diego</i> (2016) 3 Cal.App.5th 772, 787-788.) The police report at issue here does not involve an officer's firsthand observations but merely summarizes what Defendant told the officer. Therefore, the police report here would not meet the requirements for admissibility under the official records exception to the hearsay rule. Based on the foregoing, Defendant makes no showing of a reasonable probability of prevailing and fails to meet her burden to show a reasonable probability of prevailing. Plaintiff to give notice.
108	City of Buena Park, a California Municipal Corporation vs. Jung 24-01423223	1. Motion for Receiver Final Accounting Superior Court Receiver Kevin Singer ("Receiver") moves for order (1) approving and settling the Receiver's final report and accounting, (2) approving final compensation and reimbursement of expenses, (3) approving the Receiver's proposed distribution of funds; (4) exonerating all bonds, (5) terminating the Receivership appointment, and (6) retaining jurisdiction regarding this Receivership appointment.

	More specifically, Receiver requests the following: 1. The Court approves and settles the Receiver's final report and accounting as presented. 2. The Court approves the Receiver's fees and expenses for services rendered from November 20, 2024, through April 30, 2026, with total fees in the amount of \$107,653.00 and total expenses in the amount of \$2,776.75. 3. Kevin Singer's actions as the Receiver are approved and ratified and are deemed to be proper and in the best interest of the Receivership Estate. This order will serve as res judicata to all challenges to the actions of the receivership, challenges to the Receiver's work, and/or challenges to this Court's oversight and direction on that work. 4. This order is binding on all parties to the receivership, as well as all others with notice of the Motion that might be impacted by this Court's order. In accordance with California Rule of Court 3.1184(c), notice of the Motion was provided to all parties, and all others known or believed to have a substantial, outstanding claim against the Receivership Estate assets. Any non-party that is impacted by this order was required to be heard at the discharge hearing. This order will not impact a non-party's due process rights; however, all actions of the receivership, even those impacting non-parties with notice, are now res judicata and cannot be challenged in a later action. 5. The Court authorizes the Receiver to pay \$9,319.50 to himself to satisfy his outstanding balance of fees and expenses through April 30, 2026, and to pay any reasonable additional fees and expenses incurred after April 30, 2026, without further order.
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	6. The Court authorizes the Receiver to distribute \$18,428.53 to Petitioner to satisfy Petitioner's cost recovery demand. 7. The Court authorizes the Receiver to distribute all remaining funds in his trust account to Respondent Sung Bo Jung or his designee. 8. The Court exonerates all bonds posted herein by the Receiver and the Parties to the case. 9. The Court discharges the Receiver and terminates the Receivership appointment. 10. The Court retains jurisdiction over any matters or claims which may later arise in connection with the Receiver and/or the Receivership Estate. 11. For such further relief as this Court deems just and proper. On November 13, 2024, the court appointed Kevin Signer as Receiver pursuant to Health and Safety Code section 17980.7(c). (ROA 35.) "If the owner of a property fails to comply within a reasonable time with the terms of an order or notice to repair or abate issued pursuant to section 17980.6, which authorizes the issuance of an order or notice to repair or abate when a building is maintained in a manner that violates building standards and the violations are so extensive and of such a nature that the health and safety of residents or the public is substantially endangered, the enforcement agency may seek and the trial court may order the appointment of a receiver for the substandard building." (County of Sacramento v. Rawat (2021) 65 Cal.App.5th 858, 865.) "The receiver is an agent of the court and holds assets for the court." (County of Sacramento v. Rawat (2021) 65 Cal.App.5th 858, 865 [citing Cal. Rules of Court, rule 3.1179(a); People v. Riverside University (1973)
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	35 Cal.App.3d 572, 583, 111 Cal.Rptr. 68].) “The receiver is obligated to preserve and manage the property during the course of the receivership.” (Southern California Sunbelt Developers, Inc. v. Banyan Limited Partnership (2017) 8 Cal.App.5th 910, 922.) “If a receiver is appointed, the owner of the substandard building and the owner’s agent are enjoined from collecting rents from the tenants, interfering with the receiver in the operation of the substandard building and encumbering or transferring the substandard building or real property upon which the building is situated.” (County of Sacramento v. Rawat (2021) 65 Cal.App.5th 858, 865 [citing § 17980.7, subd. (c)(3)].) “The trial court shall discharge the receiver when the conditions cited in the notice of violation have been remedied in accordance with the trial court’s order or judgment and a complete accounting of all costs and repairs has been delivered to the trial court.” (County of Sacramento v. Rawat (2021) 65 Cal.App.5th 858, 865 [citing § 17980.7, subd. (c)(9)].) “A receiver must present, by noticed motion or stipulation of all parties, a final account and report, a request for the discharge and a request for exoneration of the receiver’s surety.” (County of Sacramento v. Rawat (2021) 65 Cal.App.5th 858, 865 [citing Cal. Rules of Court, rule 3.1184(a)].) California Rules of Court, rule 3.1184 governs a receiver’s final account and report. Rule 3.1184 states: “(a) Motion or stipulation A receiver must present by noticed motion or stipulation of all parties: (1) A final account and report;
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		(2) A request for the discharge; and (3) A request for exoneration of the receiver's surety. (b) No memorandum required No memorandum needs to be submitted in support of the motion or stipulation served and filed under (a) unless the court so orders. (c) Notice Notice of the motion or of the stipulation must be given to every person or entity known to the receiver to have a substantial, unsatisfied claim that will be affected by the order or stipulation, whether the person or entity is a party to the action or has appeared in it. (d) Claim for compensation for receiver or attorney If any allowance of compensation for the receiver or for an attorney employed by the receiver is claimed in an account, it must state in detail what services have been performed by the receiver or the attorney and whether previous allowances have been made to the receiver or attorney and the amounts." (Cal Rules of Court, rule 3.1184.) "Notice of a receiver's final account and report and request for discharge must be given to every person or entity known to the receiver to have a substantial, unsatisfied claim that will be affected by the trial court's order, whether or not the person or entity is a party to the action or has appeared in it." (County of Sacramento v. Rawat (2021) 65 Cal.App.5th 858, 866 [citing Cal. Rules of Court, rule 3.1184(c)].) "Receivers are entitled to compensation for their own services and the services performed by their attorneys."
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	(Southern California Sunbelt Developers, Inc. v. Banyan Limited Partnership (2017) 8 Cal.App.5th 910, 922.) “Generally, the costs of a receivership are paid from the property in the receivership estate.” (Ibid.) “However, courts may also impose the receiver costs on a party who sought the appointment of the receiver or ‘apportion them among the parties, depending upon circumstances.’ ” (Ibid.) “Courts are vested with broad discretion in determining who is to pay the expenses of a receivership, and the court's determination must be upheld in the absence of a clear showing of an abuse of discretion.” (Ibid.) “Moreover, ‘The amount of fees awarded to a receiver is ‘in the sound discretion of the trial court and in the absence of a clear showing of an abuse of discretion, a reviewing court is not justified in setting aside an order fixing fees.’ ” (Southern California Sunbelt Developers, Inc. v. Banyan Limited Partnership (2017) 8 Cal.App.5th 910, 922.) “A receiver, as any fiduciary, may be surcharged and his or her surety held liable for a failure to properly carry out the duties imposed by the order of appointment.” (Ibid.) “In examining the receiver’s account, the court assumes the receiver is honest until the contrary appears.” (County of Sacramento v. Rawat (2021) 65 Cal.App.5th 858, 865 [citing People v. Riverside University, supra, 35 Cal.App.3d at p. 586, 111 Cal.Rptr. 68 (stating that examination of account is conducted in a spirit of equity)].) “Unsubstantiated objections to a receiver’s account do not provide a basis for refusing to approve an account.” (County of Sacramento v. Rawat (2021) 65 Cal.App.5th 858, 865.) “Dismissal of the complaint does not deprive the trial court of jurisdiction to settle the receiver’s account and discharge the receiver.” (County of Sacramento v. Rawat (2021) 65 Cal.App.5th 858, 866.) “Whether to approve a receiver’s account and to grant or deny a motion to discharge the receiver is within the
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	trial court's broad discretion.” (County of Sacramento v. Rawat (2021) 65 Cal.App.5th 858, 866.) Here, the motion appears to meet all requirements under California Rules of Court, rule 3.1184. The receiver’s fees and expenses appear reasonable under the circumstances and, although no party stipulated to the receiver’s motion, it appears that the parties are in agreement that the expenses were reasonable for the work performed based on the payments that the receiver has already received for his services. For example, the Receiver’s total fees and expenses in this matter from November 20, 2024, through April 30, 2026, are \$110,429.75, comprising \$107,653.00 in fees and \$2,776.75 in expenses. Before the filing of this motion, the Receiver has been paid \$101,110.25 toward his total fees and expenses and there only remains an outstanding balance owed to the Receiver through April 30, 2026 in the amount of \$9,319.50 (\$110,429.75 - \$101,110.25). Receiver provided a detailed list of the actions he performed pursuant to his duties and provided invoices for the amount due. After performing his duties, being paid \$9,319.50 for his services, and paying \$18,428.53 in fees and costs to the petitioner, the receiver calculates that the distribution from the property will amount to \$470,387.22 to respondent. The motion is unopposed and therefore no party has proffered evidence or argument contrary to that of the receiver. The recommendation is to GRANT the motion and sign the proposed order submitted by the receiver. (See ROA 134.) RECOMMENDED RULING: Superior Court Receiver Kevin Singer (“Receiver”) moves for order (1) approving and settling the Receiver’s final report and accounting, (2) approving final compensation and
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		reimbursement of expenses, (3) approving the Receiver's proposed distribution of funds; (4) exonerating all bonds, (5) terminating the Receivership appointment, and (6) retaining jurisdiction regarding this Receivership appointment. The motion is unopposed. Pursuant to California Rules of Court, rule 3.1184, the Motion is GRANTED. Receiver to give notice 2. Order to Show Cause re: Dismissal Court is inclined to dismiss the case but will hear from the parties first.
109	Hernandez-Magana vs. Volkswagen Group of America, Inc. 24-01450948	Motion for Attorney Fees Plaintiffs Sharon Hernandez-Magana and Jonathan Hernandez-Magana's ("Plaintiffs") motion for attorney fees is GRANTED IN PART, and Plaintiffs are awarded \$21,607 in attorney fees. Plaintiffs initially sought \$23,539, consisting of a base lodestar of \$18,939, \$2,300 for work relating to the attorney-fee motion, and \$2,300 for work relating to Defendant's motion to tax costs. (Figura Decl., ¶ 28.) Plaintiffs' reply reduces the request to \$22,527, consisting of the \$18,939 base lodestar, \$2,300 for additional fee-motion work, and \$1,288 actually incurred in connection with Defendant's motion to tax costs. (Reply, p. 7; Supp. Figura Decl., ¶¶ 3, 9.) Entitlement to Award: Under Civil Code section 1794, subdivision (d), a prevailing buyer may recover attorney fees based on